



Birmingham Corporation Act 1968

CHAPTER xvi

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ELIZABETH II



1968 CHAPTER xvi

An Act to empower the lord mayor, aldermen and citizens of the city of Birmingham to make payments to or on behalf of tenants of certain dwelling-houses in the said city in respect of the rents thereof; and for other purposes.
[3rd July 1968]

WHEREAS—

- 1) The city of Birmingham (in this Act called “the city”) county borough under the management and local government of the lord mayor, aldermen and citizens of the city (in this Act called “the Corporation”):
- 2) By virtue of subsection (3) of section 113 of the Housing Act, 1957, the Corporation are empowered to grant to any of their tenants such rebates from rent, subject to such terms and conditions, as they may think fit and it is expedient that the Corporation should be empowered to make payments to or on behalf of certain other tenants in respect of rent as provided in this Act:
- 3) It is expedient that the other provisions contained in this Act be enacted:

(4) The purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51. (5) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short and
collective
titles.

1.—(1) This Act may be cited as the Birmingham Corporation Act 1968.

(2) The Birmingham Corporation Acts, 1876 to 1965, and this Act may be cited jointly as the Birmingham Corporation Acts, 1876 to 1968.

Interpretation.

2.—(1) In this Act unless the subject or context otherwise requires—

1968 c. 23.

“ the Act of 1968 ” means the Rent Act, 1968;

“ the city ” means the city of Birmingham;

“ controlled tenancy ” and “ regulated tenancy ” have the meanings assigned to them by section 7 of the Act of 1968;

“ the Corporation ” means the lord mayor, aldermen and citizens of the city;

1957 c. 56.

“ the Corporation's rent rebates ” means the rebates from rent which the Corporation grant under subsection (3) of section 113 of the Housing Act, 1957;

“ the council ” means the council of the city;

“ a house of the Corporation ” means a dwelling-house of which the interest of the landlord belongs to the Corporation;

“ housing association ” has the meaning assigned to it by subsection (1) of section 189 of the Housing Act, 1957;

1964 c. 56.

“ housing society ” has the meaning assigned to it by subsection (7) of section 1 of the Housing Act, 1964;

“ let ” includes sub-let;

“ tenancy ” includes sub-tenancy;

“ tenant ” has the meaning assigned to it by section 113 of the Act of 1968.

(2) In this Act unless the subject or context otherwise requires the expression "dwelling-house" means a building let and used wholly as a separate dwelling or a part of a building being a part let and used:

Provided that a building or part of a building shall not for the purpose of this definition be excluded from being a dwelling-house by reason only of the kitchen being used by a tenant in common with another person or other persons.

(3) For the purpose of this Act or of any calculation made under this Act the gross value and the rateable value of a dwelling-house shall respectively be deemed to be the gross value and the rateable value of the dwelling-house as shown in the valuation list for the time being current for the city, or, if no gross value or no rateable value (as the case may be) of that dwelling-house is shown in that list, such value as the Corporation may estimate.

(4) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment including this Act.

3.—(1) This Act applies to tenants in occupation of dwelling-houses in the city other than— Application of Act.

(a) a tenant of a house of the Corporation;

(b) a tenant of a dwelling-house the rateable value of which for the time being exceeds one hundred and ten pounds or such greater or less sum as the council may after consultation with the Minister of Housing and Local Government by resolution from time to time determine;

(c) a tenant who occupies a dwelling-house under the terms of his employment;

(d) a tenant of a dwelling-house which is let by a housing association or a housing society whose constitution or rules restrict membership of the association or society to, or whose management is such as to result in substantially all the members being, persons entitled or prospectively entitled (whether as tenants or otherwise) to occupy a house provided or managed by the association or society.

(2) If the council pass a resolution varying the sum referred in paragraph (b) of subsection (1) of this section, the Corporation shall cause to be published in a local newspaper circulating in the city notice of the passing of the resolution and of the sum fixed thereby.

Power to make payments to certain tenants.

4. Subject to the provisions of section 5 (Calculation of payments to tenants) of this Act the Corporation may, as they may from time to time determine and subject to such terms and conditions as they may think fit, on the application of a tenant to whom this Act applies, make payments out of the general rate fund of the city to him, or to another person on his behalf, in respect of the rent payable by him.

Calculation of payments to tenants.

5.—(1) The payments, if any, which the Corporation may make to or on behalf of a tenant under section 4 (Power to make payments to certain tenants) of this Act shall as far as practicable be calculated in the same manner as the Corporation's rent rebates are for the time being calculated:

Provided that such payments to or on behalf of a tenant shall be calculated by reference to his net rent as ascertained in accordance with subsection (2) of this section.

(2) (a) For the purpose of calculating any payment to or on behalf of a tenant under this Act his net rent shall be ascertained by deducting from the rent payable by him or his assessed rent as determined under paragraph (b) of this subsection (whichever be the less) a sum equal to so much of the rent as represents rates or any other matter which would not be treated as part of the net rent for the purpose of determining the Corporation's rent rebates if the dwelling-house had been a house of the Corporation.

(b) For the purpose of paragraph (a) of this subsection the assessed rent of a tenant shall be deemed to be—

- (i) in the case of a regulated tenancy where the rent is registered under Part IV of the Act of 1968—the rent so registered;
- (ii) in the case of a controlled tenancy—a rent equal to the limit ascertained under Part V of the Act of 1968;
- (iii) in the case of a tenancy where the rent is registered with the Corporation under Part VI of the Act of 1968—the rent so registered;
- (iv) in any other case—such rent as in the opinion of the Corporation would be payable to them if the dwelling-house were a house of the Corporation, having regard to the current level of rents of houses of the Corporation.

False statements to obtain payments under this Act.

6.—(1) Any person who for the purpose of procuring for himself or another person any benefit under this Act makes a statement which he knows to be false in a material particular or recklessly makes a statement which is false in a material particular shall be liable on summary conviction to a fine not exceeding one hundred pounds, or to imprisonment for a term not exceeding three months, or to both.

(2) The court by which a person is convicted of an offence under this section may by the conviction adjudge him to repay to the Corporation a sum not exceeding the amount of the payment obtained by means of the false statement.

7. Any expenditure incurred by the Corporation under this Act, except under section 11 (Costs of Act), shall not be taken into account in computing the expenditure of the Corporation for the purposes of rate support grant.

Expenditure not to be taken into account for rate support grant.

8. No person other than the Corporation shall institute proceedings for an offence under this Act without the written consent of the Attorney-General.

Restriction on right to prosecute.

9. The following sections of the Public Health Act, 1936, shall have effect as if references therein to that Act included a reference to this Act:—

Application of provisions of Public Health Act, 1936.
1936 c. 49.

Section 304 (Judges and justices not to be disqualified by liability to rates); and

Section 328 (Powers of Act to be cumulative).

10. The following provisions of the Birmingham Corporation (Consolidation) Act, 1883, so far as they are applicable in that behalf, shall, with any necessary modifications, extend and apply to the exercise of the powers of this Act in the same manner as if those provisions were re-enacted in this Act, namely:—

Application of existing enactments.
1883 c. lxx.

Section 8 (Power to appoint committees); and

Section 9 (Proceedings of committees).

11. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation.

Costs of Act.

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